

24NNCV00780 24NNCV00780

County: los-angeles

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Case Number: 24NNCV00780 Hearing Date: August 4, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

PALM ETC TRUST, by trustee Emahn

Counts,

Plaintiff,

vs.

JACK DELUCA d/b/a JACK DELUCA

PLUMBING & SEWAGE; JACQUELINE SOMMERS d/b/a BETTER THAN SEPTIC; and DOES

1-10,

Defendants.

Case

No.:

24NNCV00780

Hearing

Date:

August
4, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION TO QUASH SERVICE OF SUMMONS AS TO LYNDON ONG YIU

AND RELATED CROSS-ACTION.

MOVING PARTY: Specially-Appearing Defendant
Lyndon Ong Yiu

RESPONDING PARTY: Plaintiff Palm ETC Trust

The Court
considered the moving papers, opposition, and reply filed in connection with
the instant motion.

BACKGROUND

On April 4, 2024,
Plaintiff Palm ETC Trust ("Plaintiff") filed this action against Defendants
Jack DeLuca d/b/a Jack DeLuca Plumbing & Sewage ("DeLuca") and Jacqueline
Sommers d/b/a Better Than Septic (collectively, "Defendants"), alleging causes
of action for (1) breach of contract, (2) negligence, and (3) breach of
warranty. The causes of action arise out of Defendants' installation of a
septic tank system at Plaintiff's property.

On June 4, 2024, DeLuca
filed a cross-complaint against Plaintiff for breach of contract.

On June 17, 2024, DeLuca
filed his first amended cross-complaint against Plaintiff alleging causes of
action for (1) breach of contract and (2) negligence.

On November 25, 2024,
DeLuca filed his second amended cross-complaint against Plaintiff, Emahn Counts

as an individual, and Gopher Construction Company, alleging causes of action for (1) defamation and (2) intentional interference with contractual relations.

On December 16, 2024,
Plaintiff filed the operative first amended complaint (the “FAC”) against Defendants.

On February 4, 2026,
Plaintiff filed an amendment to the FAC for incorrect name, having discovered the true name of Defendant Jacqueline Sommers d/b/a Better Than Septic to be Sommertime Ventures, LLC d/b/a Better Than Septic.

On June 11, 2026,
Plaintiff filed an amendment to the FAC for fictitious name, designating Lyndon Ong Yiu individually and d/b/a The Friday Group, Inc. (“Yiu”) as Doe 1.

On June 24, 2026,
Plaintiff filed proof of service of summons by personal service.

On July 6, 2026, Yiu
filed the instant motion to quash service of summons.

On July 20, 2026,
Plaintiff filed an opposition.

On July 28, 2026, Yiu
filed a reply.

LEGAL STANDARD

“Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant.” (AO Alfa-Bank v. Yakovlev (2018) 21 Cal.App.5th 189, 202 [internal citations omitted].) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential.” (Kremerman v. White (2021) 71 Cal.App.5th 358, 371.) Defendant’s knowledge of the action does not dispense with statutory requirements for service of summons. (Kappel v. Bartlett (1988) 200 Cal.App.3d 1457, 1466.)

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow” may move “to quash service of summons on the ground of lack of jurisdiction of the court over him or her” that results from lack of proper service. (Code of Civ. Proc., § 418.10, subd. (a)(1).) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20, subd. (a)(3).) ¶¶

Once a challenge to a court’s personal jurisdiction is filed, “the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence. This may be done through presentation of declarations, with opposing declarations received in response.” (CenterPoint Energy, Inc. v. Superior Court (2007) 157 Cal.App.4th 1101, 1118 (citing Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568).) “When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.’” (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.)

DISCUSSION

Yiu moves to quash service of summons on the grounds that the summons was defective and Plaintiff’s attempted personal service on Yiu was insufficient.

A.
Whether
Service was Insufficient

Yiu argues that the summons and complaint were not properly served on him.

As a preliminary matter, the Court notes that Yiu appears to confuse Plaintiff’s personal service with a substituted service attempt and argues that substituted service procedures were not followed. The proof of service attests to personal service, and Plaintiff does not contend to have attempted substituted service. (Opp., 5:18-23.) Substituted service requirements of follow-up mailing and reasonable diligence are unnecessary. Thus, the Court will analyze whether

Plaintiff properly personally served Yiu.

"A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery." (Code Civ. Proc., § 415.10, sub. (a)(1).) "Evidence Code section 647 provides that a registered process server's declaration of service establishes a presumption that the facts stated in the declaration are true. (Rodriguez v. Cho (2015) 236 Cal.App.4th 742, 750.) This presumption requires the trier of fact to assume the existence of the facts stated in the return unless and until evidence is introduced that would support a finding of its nonexistence. (Evid. Code, § 647, American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

Here, the proof of service filed by Plaintiff includes the declaration of a registered process server declaring that he personally served Yiu at 3433 Prospect Ave, La Crescenta, CA 91214 on June 18, 2026. (Yiu Decl., Exh. 2.) The proof of service specifies that Yiu confirmed his identity by saying "yes" when named, accepted the service with direct delivery, and "appeared to be a black-haired Asian male contact 45-55 years of age, 5'4"-5'6" tall and weighing 160-180 lbs." (Yiu Decl., Exh. 2.) Because of the statutory presumption under Evidence Code section 647, Yiu is thus required to produce evidence that he was not served.

Yiu contends the process server did not hand him a copy of the summons and complaint but instead placed the packet on Yiu's front porch and left the property because he seemed afraid of Yiu's dogs. (Yiu Decl., ¶ 2.) Yiu declares that he has Ring doorbell camera footage but does not include any footage in the exhibits supporting this motion. (Yiu Decl., ¶ 4.) Yiu does not provide any further evidence other than his declaration to support this motion. Likewise, Yiu does not refute the process server's description of his appearance or address.

The Court finds that Yiu's self-serving declaration is insufficient to overcome the presumption that service was effective. (Evid. Code., § 647; Rodriguez, supra, 236 Cal.App.4th at p. 750.) Yiu does not provide the Court with any additional evidence supporting his assertion that service was insufficient. In reply, Yiu purports to have attached the declaration of his wife, Grainne Ong

Yiu, but the Court notes that Yiu failed to attach said declaration. On its own, Yiu's declaration does not support finding that the proof of service was untrue.

B. Whether the Summons was Defective

Yiu argues the served summons is defective because it does not identify service of a Doe defendant, contains incorrect information regarding the proper courthouse and Plaintiff's attorney, and no summons has been issued to Yiu by name.

"When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint ... and when his true name is discovered, the pleading or proceeding must be amended accordingly; ... if there be no summons or process, the copy of the first pleading or notice served upon such defendant bore on the face thereof a notice stating in substance: 'To the person served: You are hereby served in the within action (or proceedings) as (or on behalf of) the person sued under the fictitious name of (designating it).'

The certificate or affidavit of service must state the fictitious name under which such defendant was served and the fact that notice of identity was given by endorsement upon the document served as required by this section." (Code Civ. Proc., § 474.) "[A] summons shall be directed to the defendant, signed by the clerk and issued under the seal of the court in which the action is pending, and it shall contain: (1) The title of the court in which the action is pending. (2) The names of the parties to the action. ..." (Code Civ. Proc., § 412.20, subd. (a).) Courts distinguish between a complete failure to comply and substantial compliance, as minor technical defects may be overlooked if there is substantial compliance. (*Mjs Enters. v. Superior Court* (1984) 153 Cal.App.3d 555, 558.)

The summons served on Yiu does not include his name or capacity as Doe 1. (Yiu Decl., Exh. 1.) Likewise, the summons does not specify that Yiu is served as a Doe defendant or under a fictitious name. (Yiu Decl., Exh. 1.) There is no indication that Plaintiff alerted Yiu that he was served as a Doe Defendant.

In opposition, Plaintiff inaccurately argues that Code of Civil Procedure section 474 does not provide a

basis for a motion to quash. “Improper service of a defendant under section 474 may be attacked by a motion to quash.” (McClatchy v. Cobelintz, Patch, Duffy, & Bass, LLP (2016) 247 Cal.App.4th 368, 375.)

The Court finds that the inaccurate courthouse and attorney information are minor technicalities, but Plaintiff’s failure to comply with Code of Civil Procedure section 474 is not. If the terms of Code of Civil Procedure section 474 are not complied with, the purported defendant is not considered named in the complaint. (McClatchy, supra, 247 Cal.App.4th at p. 375.)

Accordingly, the Court grants Yiu’s motion to quash on these grounds.

CONCLUSION

Based on the foregoing, the Court GRANTS Yiu’s motion to quash service of summons.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 4, 2026

Sarah
J. Heidel

Judge
of the Superior Court